

clergymen from ministry in the absence of subscribing to a loyalty oath); *United States v. Lovett, supra* (barring named individuals from Government employment); *United States v. Brown, supra* (barring Communist Party members from offices in labor unions).

Needless to say, appellant cannot claim to have suffered any of these forbidden deprivations at the hands of the Congress. While it is true that Congress ordered the General Services Administration to retain control over records that appellant claims as his property,³⁹ § 105 of the Act makes provision for an award by the District Court of "just compensation." This undercuts even a colorable contention that the Government has punitively confiscated appellant's property, for the "owner [thereby] is to be put in the same position monetarily as he would have occupied if his property had not been taken." *United States v. Reynolds*, 397 U. S. 14, 16 (1970); accord, *United States v. Miller*, 317 U. S. 369, 373 (1943). Thus, no feature of the challenged Act falls within the historical meaning of legislative punishment.

2

But our inquiry is not ended by the determination that the Act imposes no punishment traditionally judged to be prohibited by the Bill of Attainder Clause. Our treatment of the scope of the Clause has never precluded the possibility that new burdens and deprivations might be legislatively fashioned that are inconsistent with the bill of attainder guarantee. The Court, therefore, often has looked beyond mere historical experience and has applied a functional test of the existence of punishment, analyzing whether the law under challenge, viewed in terms of the type and severity of burdens imposed, reasonably can be said to further nonpunitive

³⁹ In fact, it remains unsettled whether the materials in question are the property of appellant or of the Government. See n. 8, *supra*.